criminals hire bank accounts opened under the Jan Dhan Yojana for Rs 3,000-Rs 5,000 a month.

CYBERCRIME HUNTING

Regulators claim that since they closely monitor the infrastructure and digital framework, there is zero system vulnerability. It is customer vulnerability, therefore, that cyber attackers exploit, by getting them to reveal information such as passwords, PINs or OTPs. It is very difficult to recover money lost thus. "Banks," says technology policy consultant Prasanto K. Roy, "will tell you that you wilfully defaulted their secure two-factor authentication (2FA) process by sharing an OTP, and therefore they do not have any liability." 2FA is a security protocol that requires two levels of authentication: a PIN or a password, and either a code that is sent to the linked mobile number or biometrics.

However, should you be defrauded, you need to inform the bank within three working days, and immediately freeze your account. If money has been lost due to the negligence of the bank or on account of third-party breach, and reported in the stipulated time, banks are liable to refund the entire amount. Banks have 90 days to investigate where the lapse occurred, and the onus is on them to prove that the negligence took place on the part of the consumer, and not at their end. If they can prove it, they do not refund the money.

Your next hope then is the cybercrime police. As soon as you are defrauded, you are expected to file a complaint online on the cybercrime portal or with the nearest cybercrime police cell. You can also call the helpline 1930. But while the mechanism exists in theory, it's a vastly different story in practice. So, even though you could count 262 cybercrime police stations across the country in 2022, their number was woefully inadequate in the face of the exponential escalation in cybercrime. Rajasthan, for instance, which, at 100,345, had the second highest number of cybercrime complaints in April 2023, had just two cybercrime police stations in 2022, according to data by the Bureau of Police Research and Development. Also, cybercrime cases, per Sections 78 and 80 of the Information Technology Act, 2000, can be investigated only by inspector-level officers. India has 29,225 police inspectors against the sanctioned strength of 40,595. There is a plea across states to let sub-inspectors investigate cases.

The dynamic nature of cybercrime is another reason why the poorly-trained police force is coming up short, especially with criminals using AI techniques. Besides, the SIM cards they use are issued in one place, and used in another. "The biggest problem," as a senior Mumbai police official points out, "is that our investigations depend on third parties. Telcos give out the SIM cards used to commit offences. The banks where the money is routed lie in states like J&K and Assam, where it is tough to find KYC details or data. The money is quickly transferred from one account to another. Calls, too, are made from apps that morph and disguise numbers and whose servers lie outside India." The local police are loath to cooperate at times, impeding the investigation of the visiting police teams. Sometimes, the police themselves have little interest in solving these cases as appointments to cyber police stations are considered non-lucrative postings. They have to spend from their own pockets if they want to travel to other states.

And even while the police may record your complaints, FIRs are filed only when a series of similar complaints have been collected. This has led to a huge pendency of cases, with the police saddled with 71,868 cybercrime cases under investigation at the end of 2021. So difficult is proving a case against cybercriminals that according to the NCRB report, the cops had to submit a final report signalling the end of investigation in 32,203 cases because they failed to find evidence.

> **"What's needed is not more laws but the will and capacity in the financial system and in law enforcement to implement the laws. And to fill the huge gaps in digital literacy and consumer awareness rights"**
>
> **–PRASANTO K. ROY,** *Technology policy consultant*



AWARENESS IS KEY

Awareness remains key in the battle against online fraud. The elderly are the most prone to cyber manipulation, as a survey by Agewell Foundation bears out. Their poll of 5,000 senior citizens in the National Capital Region revealed that nearly 86 per cent were not conversant with digital technology or computers. Helpage India runs a digital literacy course for the elderly, which teaches them safe online transactions and how to pay bills. Mumbai-based homemaker Dhriti Malhotra has enrolled her 72-year-old mother for the course, and also installed the crowdsourcing protection app Truecaller as well as the Shield app that protects phones from mirror apps.

Banks, too, are taking the lead in educating customers about cyber fraud. HDFC Bank, for instance, has launched Vigil Aunty, a mock social media influencer whose "mission is to help you gain freedom from frauds". "As a bank," says HDFC Bank's Agrawal, "we have invested in transaction monitoring to prevent frauds." A 24x7 transaction